

We Can't Leave Street Safety to Traffic Engineers

Charles Marohn · August 26, 2024



I recently wrote about the response of city officials in [Durham, Ontario, to a traffic fatality](#) and their focused desire to make sure the driver is held accountable. It made me think of the defense strategy in the movie "A Few Good Men." The lead defense counsel, Lieutenant Kaffee, played by Tom Cruise, [said this about the jury](#):

A jury trial is not just about the law. It's about assigning blame. Santiago is dead and he shouldn't be. These nine people are going to insist that someone be blamed for that. Ross is handing them our clients. We're going to hand them Kendrick.

When someone dies in a car crash, it is very human to want to assign blame, to bring some order to the randomness of the tragedy. An entire industry has grown up around this human tendency, from law enforcement to insurance agencies, from engineering organizations to safety advocates. We insist that someone be blamed. Anything else is wholly dissatisfying.

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Our thoughts and prayers are with all those effected by this tragic incident. Our dedicated collision investigation team continues to gather evidence to form a complete picture of this incident so that the driver can be held accountable for their actions.

 **Durham Regional Police** @DRPS · Jul 22

A 22-year-old male is facing charges after a fatal collision on Simpson Ave in Bowmanville. On July 21, 2024, officers from @DRPSEastDiv responded to a collision that resulted in a vehicle leaving the roadway and hitting three pedestrians.

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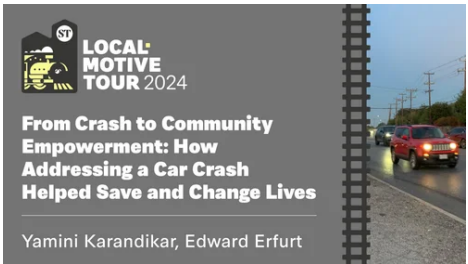
Traffic engineers sit at the center of our transportation system. They oversee the planning, design and operations of our streets, roads, bridges, interchanges and overpasses. If you ask a traffic engineer what the most important aspect of their job is, they will almost certainly say something regarding safety. I believe they are sincere in this.

Even so, we can't leave safety to traffic engineers. The traffic engineering profession grew out of the highway building era, a time of massive budgets, broad political support and few constraints. The profession's core set of insights assumes that this kind of operating environment persists today, despite it not existing for decades. Traffic safety problems can no longer be solved with brute force. In fact, the attempt to do so is the root cause of most remaining safety conflicts.

The traffic engineering profession has evolved three accepted responses to fatal crashes:

1. Blame the driver.
2. Call for more engineering.
3. Conclude it was a lamentable accident that could not have been prevented.

Each of these is an understandable human reaction. Each of these is also inadequate.



Blame the Driver

Again, it is very human to feel the need to assign blame. In a fatal car crash, responding police officers have a checklist and are trained to document all the ways blame can be assigned. While it is not wrong to look at the ways driver behavior leads to crashes, it is inadequate to stop there (which nearly every traffic safety professional does). Every fatal crash has [multiple contributing factors](#). And everyone who drives meets the [ridiculously broad definition](#) of being a reckless driver.

I also recognize that there is a parallel line of thinking when it comes to people walking or biking. Were they in the crosswalk or bike lane? Were they wearing brightly colored clothes? For non-engineers, this feels like an exercise in victim-blaming. And, indeed, it is. It's just not done out of malice as much as professional myopia.

More Engineering Needed

When there's a national security crisis, the president assembles generals *and* diplomats. They have different understandings of the world and are good at different things. Nobody is surprised when the

chief's discernment is needed.

A mayor and city council that listens solely to their engineer is like a president listening solely to the general or the diplomat. They are going to get a narrow perspective based on the limited tools and approaches of the engineer. Again, that's not malicious. It's myopic.

This might have been adequate two generations ago when this stuff was all new and professionals had huge budgets to figure it all out. Today, when local governments face broad fiscal crises along with rising traffic deaths, there is an urgent need for new ideas and approaches. [It is not acceptable](#) to say that it will take years and millions of dollars to address an obvious safety problem. Especially when [it doesn't need to](#).

Thoughts and Prayers

In the absence of taking any corrective action, sending “thoughts and prayers” to those impacted by tragedy has rightfully become an indicator of voluntary impotence. When it comes to traffic engineers and fatal crashes, that voluntary impotence is a byproduct of an artificially small toolbox. If the ultimate engineering solution is not practical and fundable then, to the traffic engineer, there is nothing to be done.

Many traffic engineers actually suggest that taking interim steps to partially address known problems creates liability for the city. This is despite most cities having statutory limits on liability and there being ample case law shielding cities that are working prudently to address issues. The appeal to liability is [merely another deflection](#).

I am not suggesting that traffic engineers don't care. They do, and I say that from decades of experience working with them. I've watched grown men cry when people they never met died in crashes on streets they never worked on. The problem here is not a lack of compassion. It is a self-created futility: The traffic engineering

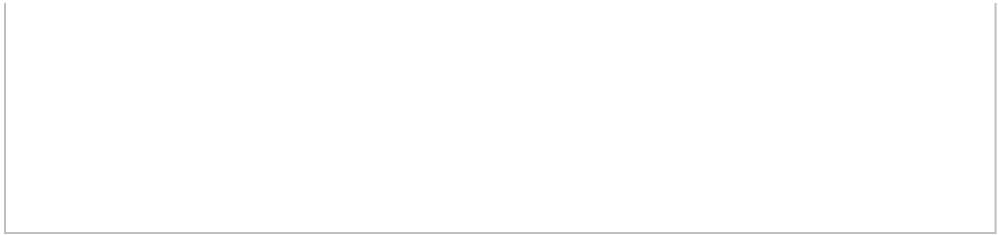
A Strong Towns Response

If blaming drivers, calling for more engineering and expressing condolences are inadequate responses, what is a local leader supposed to do instead? Can they really overrule their traffic engineer?

Yes and no. There are a few technical things related to traffic that require a licensed engineer, but there are no policy-level decisions that do. For example, [design speed is a policy decision](#), an application of core values, and should not be delegated to a traffic engineer. There is a long list of nontechnical decisions like this that I document in "[Confessions of a Recovering Engineer](#)."

Even more powerful, local leaders can require that their traffic engineers work as part of a multidisciplinary team — a team where they are but one member with one perspective that must be harmonized with the perspectives of other team members. I've written that cities should use a [Street Design Team](#) and put a nontechnical person in charge of it. This proper readjustment of bureaucratic power dynamics is well within the purview of elected officials.

And, of course, all cities need to have a Crash Analysis Studio process to analyze all the factors that contribute to fatal and traumatic crashes. Driver error may be a factor, but it is never the only factor. [No one should be the second person to die](#) on a dangerous street. They don't have to be, but it requires moving beyond assigning blame, pursuing more engineering or sending thoughts and prayers. It requires a Strong Towns approach.



Charles Marohn

Charles Marohn (known as “Chuck” to friends and colleagues) is the **founder and president** of Strong Towns and the bestselling author of “[Escaping the Housing Trap: The Strong Towns Response to the Housing Crisis](#).” With decades of experience as a land use planner and civil engineer, Marohn is on a mission to help cities and towns become stronger and more prosperous. He spreads the Strong Towns message through in-person presentations, the Strong Towns Podcast, and his books and articles. In recognition of his efforts and impact, Planetizen named him one of the 15 Most Influential Urbanists of all time in 2017 and 2023.



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